

Proc. § 1281.2; see *Ashburn v. AIG Financial Advisors, Inc.* (2015) 234 Cal.App.4th 79, 96.

It is the moving party's burden to prove the existence of such an agreement. *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951.

In the instant matter, the court takes judicial notice of the Complaint and its exhibits. These exhibits demonstrate, by a preponderance of the evidence, the existence of an arbitration clause, and also that Defendant has properly triggered this clause by virtue of this Motion.

Disposition

Defendant's Motion is granted.

The instant matter will be stayed and calendared for a future CMC to check on the status of the arbitration.

The Court will file the Order and notify the parties of the future CMC date.

Courtroom Clerk's Session

13. 1:30 PM CASE NUMBER: RS25-0934
CASE NAME: CHEER WISH INC. VS. KENNETH EDGERLY
JURY TRIAL
FILED BY:
TENTATIVE RULING:

14. 1:30 PM CASE NUMBER: RS26-0041
CASE NAME: JAIME CHAVEZ VS. JAVIER LOPEZ
JURY TRIAL
FILED BY:
TENTATIVE RULING: